EssayGrader

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policy

02. Download security report

03. Terms of Service

Competitor website

01 | Privacy Policy

https://www.essaygrader.ai/privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

Privacy Policy

[Last Updated, April 27, 2026]

Your Data, Not Ours: The data you share with EssayGrader is only ever used to provide you with the services we offer (AI grading, plagiarism detection, AI writing detection and tracking students' writing improvements).

We never, ever do any of the following with the data you share with us :

Sell the data

Use it for targeted advertising

Use it to build behavioral or demographic profiles of students

All the uploaded data strictly belongs to the individual user and/or the educational institution.

Maximum De-identification: We take all reasonable measures to anonymize and de-identify potential student PII using multiple mechanisms including advanced filtering, sophisticated prompt engineering mechanisms, and strict AI instructions to make sure any student PII remains private and protected.

Internal Access Restrictions: Our employees and contractors are subject to strict confidentiality agreements and are forbidden from accessing your data with strict access controls in place. For day-to-day operations like database maintenance, backend data is completely obscured into anonymized machine code (e.g., "0s" and "1s") with zero visibility into the uploaded data. Readable access is not available unless authorized by the user or the institution for purposes such as reviewing grading accuracy, providing technical support, or performing data deletion.

Data Retention: We only retain student data uploaded to the platform as long as necessary to comply with the privacy policy or provide the service. If you delete your account or our contractual relationship ends, all the associated data is permanently deleted within 60 days.

Comprehensive Security Program: We maintain a rigorous information security program designed to protect the confidentiality, integrity, and availability of student data against unauthorized access, use, or disclosure. Our security framework aligns directly with industry- standard NIST SP 800-53 standard.

Fully FERPA Compliant: EssayGrader maintains full FERPA compliance by handling any uploaded student data with the same strict data protections required for official educational records.

Full Privacy Policy

This Privacy Policy applies to Tech Nest Ventures Inc., and any of the services provided by us, our affiliates, subsidiaries and/or related entities, as applicable (collectively, "EssayGrader", "we", "our" or "us"), including but not limited to EssayGrader's website available at www.essaygrader.ai, our web-based AI grading platform ("Platform"), and any other product or service that we choose to apply this Privacy Policy to (collectively, "Service"), and details how we collect, use, and disclose data, including personal, anonymous and aggregated data, about you ("you" or "your") and the data you upload to the Platform.

BY CLICKING "I AGREE" OR SIMILAR CONFIRMATION OR BY USING THE SERVICE OR BY AGREEING TO OUR TERMS OF SERVICE YOU ARE AGREEING TO THE TERMS OF THIS PRIVACY POLICY.

IF YOU ARE AGREEING TO THIS PRIVACY POLICY ON BEHALF OF AN ORGANIZATION, YOU REPRESENT AND WARRANT THAT YOU HAVE THE AUTHORITY TO BIND THE ORGANIZATION TO THIS PRIVACY POLICY AND ARE AGREEING TO THIS PRIVACY POLICY FOR THAT ORGANIZATION. WHERE YOU ARE AGREEING TO THE SERVICE ON BEHALF OF AN ORGANIZATION, "YOU" AND "YOUR" REFERS TO THE ORGANIZATION.

1) DESCRIPTION OF THE SERVICE :The Platform provides you and other users with a web-based application for managing, monitoring and streamlining the grading process. In order for us to provide the Service and for other purposes related to the Service, EssayGrader may collect, use and disclose certain personal data (personal information). This

Privacy Policy describes how we access, collect and use personal data of our users, including you.

2) HOW WE OBTAIN YOUR DATA : To operate the Service, EssayGrader may be required to access, collect and process personal data, which is information about you or that can be used to identify you. We may also access, collect and process anonymous and aggregated data, which does not identify you.

EssayGrader obtains your personal data when you use the Service and directly from you when you provide it to us. In certain circumstances, such as registering an account on the Platform, the Service may require you to submit personal data in order to create such an account (“Account”). Your use of the Service is governed by our Terms of Service, including any applicable order form (“Terms”), which you must agree to in order to use the Service, and this Privacy Policy. If you have any questions or concerns about the use or disclosure of your personal data, please contact us at your convenience using the contact information found below.

Subject to EssayGrader’s legal, contractual and technical requirements, you may choose not to provide EssayGrader with certain data or request the deletion of certain data. By choosing not to provide us with data, certain features or essential operations of the Service may be unavailable to you or otherwise restricted.

3) DATA WE COLLECT: We collect personal data about you when you access the Service. The following is a description of the data that we may collect, use and/or process in connection with the Service:

Your full name, email address, job title, and password when you register an Account on the Service, and/or your Google profile information if you choose to register an Account using your Google account (“Account Data”);

Information about courses, assignments, rubrics, essays, submissions and other content you upload to the Platform in order to use its functionalities (“Course Information”);

Your payment data, if you make purchases, including your payment instrument number and the security code associated with your payment instrument. All payment data is stored by Stripe and you may find their privacy policy here: stripe.com/en-ca/privacy (“Payment Data”);

Cookies and similar tracking technologies to track activities on the Service (“Tracking and Cookies Data”); and

Basic geolocation data, information about your computer, phone, mobile device, web-connected devices or other devices used to connect to the Service including but not limited to, operating system information, browser type and version, time and date of Service use, and unique identifiers and tokens that may identify you over time and across different websites including unique device identifiers (“Usage Data”).

We also collect anonymous data that does not identify you, including but not limited to responses to feedback requests, metrics and other types of statistical data, which could be derived from use of the Service and analytical data concerning the Service. EssayGrader may aggregate and/or de-identify the personal data it collects to gather and/or share statistics about the Service, including for marketing and promotional purposes.

4) COOKIES AND DIGITAL TRACKING TECHNOLOGIES: :The Service uses tracking technologies, including cookies, to collect data about you such as device information. This data is collected, used and disclosed in accordance with the terms of this Privacy Policy and the applicable third-party privacy policies. You have the right to opt-in and opt-out of certain cookies that are not necessary for the operations of the Service, including third-party cookies and may do so directly on our website or by contacting us using the information below.

5) PROCESSING AND SHARING OF YOUR PERSONAL DATA: "We process your personal data primarily for our legitimate business purposes, such as providing the Service to you, understanding your needs and the needs of other users, improving the quality of the Service and analyzing the data we collect. Specifically, these uses include but are not limited to:

Displaying and delivering Platform content through the Service;

Authenticating users, maintaining and analyzing functionality of the Service, backing up data or testing and researching new features of the Service;

Supporting the security and integrity of the Service and its users including but not limited to detecting and protecting EssayGrader and other third-parties against error, fraud, piracy, theft and other illegal activity or for contractual, legal, regulatory or audit obligations;

Understanding your needs to improve the quality and reliability of the Service, including providing customer support and feedback, analyzing functionality and technical issues, tracking use of the Service and generating reports and data

models that we use to improve the Service;

Investigating improper or suspicious activity on or in the Service; and

Contacting you by email for various reasons, including but not limited to user feedback and/or service requests. We will only contact you for marketing, promotional or other purposes restricted by applicable law if you have previously consented to being contacted for such purposes and have not withdrawn your consent or subsequently opted-out.

We may disclose your personal data to our parent companies, affiliates, subsidiaries, employees, and contractors (collectively, “EssayGrader Parties”) for the same purposes described above. We only disclose your personal data to such EssayGrader Parties where we have taken steps to ensure that such parties are subject to agreements requiring them to comply with applicable privacy laws and maintain confidentiality standards when handling personal data, including any student data you may upload as part of the Course Information.

Additionally, and as permitted by applicable law, we may also disclose your personal data to third-party service providers and/or sub-processors. The situations where we disclose your personal data to third-parties include, but are not limited to:

Processing and storing your personal data as described above as well as providing and enhancing the Service features;

Tracking certain events on the Service, such as user interactions, usage-times, and related events and providing it to third-parties to analyze and assess Service performance;

Providing customer support and feedback, analyzing functionality and technical issues, tracking use of the Service and generating reports and data models that we use to improve the Service;

Complying with a subpoena or warrant or an order made by a court, person or body with jurisdiction to compel the production of data, complying with court rules regarding the production of records and data, defending our rights and the rights of others or providing information to our legal counsel.

6) THIRD-PARTY SERVICES: Except for those third-parties processing your data on behalf of EssayGrader, this Privacy Policy only applies to personal data that EssayGrader collects, processes and discloses itself and does not apply to the collection, processing and disclosure of data by third parties through third-party services, which may be broader than what is set forth in this Privacy Policy, and that may be embedded into the Service.

Please contact us directly using the information below if you would like to learn more about third-party data practices.

7) OBTAININGI, RECTIFYING AND CONTROLLING YOUR PERSONAL DATA: Contact EssayGrader or directly edit information in your Account (as applicable) to correct inaccurate personal data or to complete incomplete personal data about you.

You may be able to opt-out of some or all of the ways in which your personal data is processed, or request the deletion of certain personal data, except where the personal data is necessary or vital:

for the performance of contractual obligations, such as the Terms;

to comply with our legal obligations;

to protect your interests or those of another person; and

for our legitimate interests or the legitimate interests of a third-party

and may do so by removing personal data, if the Service permits such removal, or by contacting us using the contact information found below.

8) DATA STORAGE, RETENTION AND TRANSFERS: EssayGrader retains your personal data only as long as necessary to comply with this Privacy Policy, subject to any applicable laws requiring a longer retention period. If you request to delete your Account, EssayGrader automatically deletes all personal data associated with your account within 60 days unless required to retain it for a different period as required by applicable laws or our contractual obligations.†

9) CHILDREN: EssayGrader complies with the U.S. Children’s Online Privacy Protection Act and all other applicable laws and regulations concerning children and the Internet. Our Terms require all Accounts to be created by persons over the age of 18 or the age of majority in their jurisdiction. EssayGrader does not intentionally collect or process information of children without the consent of a parent, guardian or applicable education provider who has already obtained the consent of such parent or guardian or is otherwise allowed to disclose such information under applicable law. If we

discover we inadvertently collected personal data from a child under the age of 13 without consent, we will delete that information as soon as possible. If you are a parent or guardian of a child who you believe provided EssayGrader with personal data without your consent, please contact your child's education provider or email us at privacy@essaygrader.ai.

If you are a resident of the EEA below the age of consent in your country, EssayGrader shall comply with applicable consent gathering standards required in your jurisdiction. For further information on how EssayGrader safeguards children's privacy rights please contact us at privacy@essaygrader.ai.

10) STUDENT DATA: EssayGrader is committed to protecting student privacy.

Though we have taken steps to ensure the limitation of student PII uploaded to the Platform, we understand that student PII may be inadvertently disclosed by our users. As such, we have taken steps to guard against further disclosure of student PII through the implementation of de-identification processes and prompt engineering mechanisms that attempt to de-identify such student data in providing certain Service features. Except as permitted by applicable law and in accordance with our contractual obligations, any student data that may be uploaded to the Service, including any inadvertently uploaded student PII, is not used to build a profile of such student, to implement targeted advertising, or sold to third-parties. If you are a parent, guardian, educational provider or eligible student and you believe we have inadvertently collected educational records or student PII without your consent, please contact the relevant school district or educational institution so that we may work with them to resolve your issue.

We are a member of the A4L community and a signatory to the A4L Community Membership Agreement. To comply with the Family Education Rights and Privacy Act (FERPA) and related laws protecting student data, we treat all student data as "educational records". As applicable, EssayGrader has agreed to act as a "school official" for purposes of FERPA and operates under the direct control and instruction of the applicable school district or educational institution with respect to handling of any student data uploaded to the Service. While we take reasonable measures to de-identify any potential personal information within user submissions before they are processed, our Terms require all Account users to remove, de-identify, anonymize or otherwise obscure any Course Information and other data they upload to the Service that may contain personally identifiable information of (or may otherwise be used to identify, directly or indirectly, including through metadata) any students and/or minors before using the Service. Grades, assessments and feedback generated by the Service are intended to provide guidance and suggestions for Account users, but such users retain all discretion in determining the final grade(s) that form part of a student's formal educational records and/or permanent records.

11) CHANGE OF OWNERSHIP OR BUSINESS TRANSITION: In the event of, or in preparation for, a change of ownership or control of EssayGrader or a business transition such as the sale of EssayGrader or the sale of some or all EssayGrader's assets, we may disclose and/or transfer your personal and anonymous data to third-parties who will have the right to continue to collect and use such data in the manner set forth in this Privacy Policy.

12) SECURITY: We are committed to ensuring that your data is secure. To prevent unauthorized access, disclosure, or breach, we have put in place suitable physical, electronic, and administrative procedures and policies to safeguard and secure the data we collect and process. As required by applicable law, we will notify you in the unlikely event we discover any cybersecurity incident or breach that may have impacted your personal data. You acknowledge and agree that the transmission of personal data to and from our Service is at your own risk and that you should only access the Service from a secure environment.

13) CONTACT PREFERENCES: We communicate with our users primarily through the Service itself, our online forums or through social media, but we may sometimes collect the email address of some of our users in order to respond to support requests or comments. If you have provided us with your email address or signed up for our newsletters and would like to change the email preferences we associate with you (for example, unsubscribing from receiving certain types of email) you may do so by clicking a link within certain types of emails that we send to you or, if no link is available, by replying with "unsubscribe" in the email title or body or by modifying your email settings within the Service.

14) CALIFORNIA "SHINE THE LIGHT" RIGHT: If you are a California resident, California Civil Code 1798.83 grants you the right to request our disclosure of the categories of personal data we provided to third parties, and the names and addresses of these third parties, for direct marketing purposes during the preceding calendar year. If you are a California resident and would like to make this request, please contact us using the contact information set forth below.

Please note that you may only make this request once per year.

15) YOUR CALIFORNIA PRIVACY RIGHTS: If you are a California resident, California Civil Code Section 1798.120 permits you to opt-out of the sale or sharing of your personal data to third parties. EssayGrader does not currently sell your data to third parties. If you have any other questions about our privacy practices or your privacy rights, please email us at privacy@essaygrader.ai.

16) LEGAL BASIS FOR PROCESSING PERSONAL DATA UNDER THE GDPR: If you are a resident of the European Economic Area ("EEA"), or another jurisdiction in which substantially similar laws apply, such as the UK, EssayGrader's legal basis for collecting and using the personal data as described in this Privacy Policy depends on the type of personal data EssayGrader collects and the context in which it is collected.

EssayGrader has a legitimate interest, as described in Article 6(1)(f) of the EU GDPR, in collecting your personal data as described in section 3 of this Privacy Policy for the purposes described in section 4 of this Privacy Policy. The categories of personal data EssayGrader collects and the legal basis for its processing are set out below:collecting and using the personal data as described in this Privacy Policy depends on the type of personal data EssayGrader collects and the context in which it is collected.

EssayGrader has a legitimate interest, as described in Article 6(1)(f) of the EU GDPR, in collecting your personal data as described in section 3 of this Privacy Policy for the purposes described in section 4 of this Privacy Policy. The categories of personal data EssayGrader collects and the legal basis for its processing are set out below:

Personal Data

EssayGrader collects and uses

Please see Sections 3, 4 and 5 for more information on personal data. The specifics of the personal data will depend on the context, but could include the following: Legal Basis for Processing

Account Data

Course Information

Payment Data

Any information you give

EssayGrader during direct inquiries

Other information you choose to share

with EssayGrader and/or insert into

the Service

Pursuant to GDPR Article 6(1)(b), processing is necessary for the performance of a contract to which you are a party or is necessary in order to take steps at your request prior to entering into a contract.

Tracking and Cookies Data

Usage Data

Pursuant to GDPR Article 6(1)(f), processing is necessary for the purposes of the legitimate interest pursued by EssayGrader or a third party.

EssayGrader may also process your Account Data to contact you with newsletters, marketing or promotional materials and other information that may be of interest to you. Pursuant to GDPR Article 6(1)(a), EssayGrader will acquire your consent prior to processing Account Data for these purposes.

We may also process your personal data for additional reasons as they become apparent to comply with the law, or if it is in EssayGrader's legitimate interests and not overridden by your privacy rights. Such reasons include but are not limited to protecting the Services and you against illegal activity, inappropriate behavior and actions that violate EssayGrader's Terms.

17) EUROPEAN USERS AND RESIDENTS OF THE EUROPEAN ECONOMIC AREA If you are a resident of the EEA, or are granted equivalent rights in your jurisdiction, including the UK, you have certain rights in regard to your personal data. These rights include:

A Right of Access. You have the right to access your personal data that we hold about you, free of charge in most circumstances;

A Right to Rectification. If your personal data is inaccurate or incomplete, you can change the information you provided by updating it directly within the Service and/or by contacting EssayGrader using the contact information listed below;

A Right to Erasure. You have the right to request deletion of the personal data EssayGrader has collected about you in many cases. You may exercise this right by using the contact information below. Please be careful as the deletion of your data in this manner is permanent and may never be restored;

A Right to Object. If the processing of your personal data is based on legitimate interests according to Article 6(1)(f) of the GDPR, you have the right to object to this processing in most cases. If you object, we will no longer process your personal data unless there are compelling and prevailing legitimate grounds for the processing as described in Article 21 of the GDPR. Such grounds include circumstances where the personal data is necessary for the establishment, exercise or defense of legal claims or in the case where the personal data is required for the provision of certain features of the Service, and you have indicated a continued desire to use such features;

A Right to file a Complaint. You have the right to file a complaint with the appropriate supervisory authority in your jurisdiction;

A Right to Restriction of Processing of your Personal Data. You have the right to obtain restrictions on the processing of your personal data as described in Article 18 of the GDPR;

A Right to Personal Data Portability. You have the right to receive your Personal Data in a structured, commonly used and machine-readable format and have the right to transmit such data to another controller under the conditions described in Article 20 of the GDPR;

A Right to Post-Mortem Control of Your Personal Data. Certain jurisdictions, such as France, have implemented data protection legislation and related regulations, whereby you may have the right to establish guidelines for the preservation, deletion and transmission of your personal data after your death in accordance with Article 40-1 of the Act No. 78-17 of January 6, 1978 on Information, Technology, Data Files and Civil Liberties or related legislation; and

A Right to Opt-out of Marketing Communications. You have the right to opt-out of EssayGrader's marketing communications at any time. You can exercise this right by clicking on the "unsubscribe" or "opt-out" link on any marketing emails EssayGrader sends you. To opt-out of other forms of marketing, please contact us using the contact details provided below.

18) UPDATES: ¶UEssayGrader reserves the right, in its sole discretion, to modify the Privacy Policy at any time ("Updates") and shall make Updates available on EssayGrader's website. You are deemed to accept Updates by continuing to use the Service. ¶

19) CONTACT US¶

If you are an EEA resident or are entitled to equivalent or similar rights to those listed above and wish to exercise a right, please contact EssayGrader's EU and UK GDPR Representative at privacy@essaygrader.ai. When sending this email please include the subject line "Exercising Privacy Rights" and a description of the right you wish to exercise and the law under which you are requesting to exercise that right in the body of the email

03 | Terms of Service

https://www.essaygrader.ai/terms-of-service

Webpage text snapshot | Retrieved 10 October 2026

These Terms of Service, including any Order Form and other document agreed to by the parties referencing these Terms of Service, (collectively, “Agreement”) are entered into between you (“you” or “your”) and Tech Nest Ventures Inc., and its affiliates (“Company”) and applies to any product, website or service provided by Company, including but not limited to Company’s artificial intelligence grading platform (“Platform”), the Company website available at essaygrader.ai, including subdomains, (“Website”) and any other product or service to which the Agreement applies (collectively, “Service”).

BY CLICKING “I AGREE” OR SIMILAR CONFIRMATION OR BY USING THE SERVICE YOU ARE AGREEING TO BE BOUND BY THE AGREEMENT.

IF YOU ARE USING THE SERVICE ON BEHALF OF AN ORGANIZATION, YOU REPRESENT THAT YOU HAVE AUTHORITY TO BIND THE ORGANIZATION TO THE AGREEMENT AND ARE AGREEING TO THE AGREEMENT FOR THAT ORGANIZATION. WHERE YOU ARE USING THE SERVICE ON BEHALF OF AN ORGANIZATION, “YOU” AND “YOUR” REFER TO THE ORGANIZATION.

THIS AGREEMENT CONTAINS A BINDING ARBITRATION PROVISION AND CLASS ACTION WAIVER. IT AFFECTS HOW DISPUTES ARE RESOLVED. PLEASE READ IT AND ALL TERMS CAREFULLY.

1. Description of the Service

The Platform is a web-based application for managing, monitoring and streamlining the grading process. The Service allows you to utilize artificial intelligence software to efficiently assess and grade uploaded content based upon specified assessment rubrics provided by Company, your school district or educational institution or individually customized by you.

2. Access; Subscription

Access and Creation. The Website provides access to: (a) publicly accessible content, such as general information about the Service and Company (“Public Site”); and (b) the Platform through one or more registered account (each, an “Account”) provided by Company at its discretion directly or indirectly through a third party single sign on (for example, Google). Anyone registering for access to the Platform must be at least 18 years old, or the age of majority in their jurisdiction (whichever is older). You represent and warrant that you have the right and authority to enter into this Agreement.

Account Types. Accounts are divided into: (a) individual accounts, for teachers, tutors, and other personal education providers, to individually access and use the Platform for their educational purposes (each, an “Individual Account”); and (b) institutional accounts, for tutoring companies, school districts, educational institutions and other groups or entities that wish to use the Service and provide Platform access to employees or contractors (each, an “Institutional Account”).

Accounts and Log-in Information. To create, access and use your Account, you shall: (a) provide accurate contact information, including but not limited to your full name, email address and telephone number; (b) ensure your Account log-in information (“Log-in Information”), remains confidential and use commercially reasonable efforts to ensure the security and confidentiality of your Log-in Information; (c) not share your Log-in Information with any other person or entity (except that you may share your Log-in Information with your Institutional Account holder if required as part of its

business practices); and (d) be responsible for all activity on the Service that originates from Accounts accessing the Service through your Log-in Information. You represent and warrant that all information provided to Company during Account registration and the onboarding process is correct and complete.

Institutional Account Administration. Institutional Account holders are provided with the ability to manage and create Individual Accounts for each of their eligible institution members (each, a “Member”). Each Member under an Institutional Account will create their own Log-In Information. Institutional Account holders are responsible for ensuring all of their Members’ acceptance to and compliance with this Agreement. Company’s responsibilities do not extend to the internal management or administration of the Service for Institutional Account holders.

Institutional Account Members. Use of and access to the Platform for each Member under their Individual Account is subject to the terms provided for under the Institutional Account holder’s Subscription or Order Form as well as the terms of this Agreement and any other written agreement between Company and the applicable Institutional Account holder or Member.

Paid Subscription. If you purchased a paid subscription for the Service, Company hereby grants you a non-transferrable, limited subscription to access paid portions of the Service, pursuant to such paid subscription, in each case subject to the Agreement (“Subscription”). For Individual Accounts, the Subscription provides access to the Platform’s features, which may include higher content upload limits, additional third party integrations and/or other features (collectively, the “Features”) as described in your Subscription terms and/or Order Form. As an Institutional Account Holder, the Subscription permits you to register Members and provide those Members with certain Features under their Individual Accounts, as detailed in your Subscription and/or Order Form.

Free Subscription. As an Individual Account holder, you may sign-up for and the Company may provide you with a free subscription for certain Service Features (“Free Subscription”), in which case the Company grants you a non-transferrable, limited subscription to access the Free Subscription as further described on the Public Site and/or Order Form. Notwithstanding any other provisions of this Agreement, access to the Free Subscription is on an “AS IS” and “WHEN AVAILABLE” basis.

Modifications; Customizations; Updates. Company reserves the right to modify Features available under the Subscription and Free Subscription on one or more occasions, temporarily or permanently. Company may, without advance notice to you, automatically install or implement customizations, updates, upgrades or new Features to the Service that Company deems to be necessary, reasonable and/or beneficial to you or your use of the Service. Company retains all right, title and interest to any modifications, customizations or updates to the Service, whether or not requested or provided to you pursuant to one or more Work Order.

Professional Services. If you request that the Company provide professional services in connection with your use of the Service, Company shall determine in its sole discretion whether to undertake such professional services and, if Company desires to proceed, provide Customer a work order for such professional services (“Work Order”). The Work Order may contain an estimate of the time required to complete such professional services, associated cost and other applicable terms. Where the request for professional services occurs prior to execution of an Order Form, the terms of a Work Order may alternatively be substituted into an Order Form. Professional services are subject to Customer’s acceptance of the applicable Work Order and any other terms incorporated by reference, including this Agreement. All right title, and interest to the work product resulting from any professional services provided under a Work Order remains Company property. You acknowledge and agree that your right to use or access the resulting product of any Work Order is in the form of a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the resulting product on the same terms as your subscription above.

Third Party Links. The Service may include links to third party websites. Company is not responsible for the content such third party websites and any kind of loss/damage arising out of your access or use thereof.

Third Party Applications. The Service integrates with third party services (“Third Party Services”), including but not limited to OpenAI, PromptLayer, Pinecone, Dropbox, Google Classroom, and Canvas LMS. The Agreement does not grant any right, title, license or interest in Third Party Services, which Third Party Services may require you to enter into separate agreements to access certain Features of the Service, and which you must determine the suitability of, in your sole discretion. If you use Third Party Services, Company may permit Third Party Services to access Customer Property as required for integration or use with the Service and as further permitted by Company’s Privacy Policy. Integration of Third Party Services relies on third parties permitting Company to integrate the Third Party Services into the Service and such permission and/or integration may conclude at any time without notice or compensation to you.

Third Party Vendors. Company uses third party vendors and hosting software, including but not limited to Stripe, DigitalOcean and Heroku, to provide the Service to you. You acknowledge and agree that except to the extent required by law, Company shall not be liable or responsible for the acts or omissions of such third party vendors and/or hosting software. You shall comply with all third party vendor terms and policies to access and use the Service and your failure to do so may render the Service inoperable or limit Service functionality.

3. Subscription Fee

Fee. The current terms of a Subscription or Free Subscription are available at essaygrader.ai/pricing or in your Order Form, as applicable. The price of the Subscription is displayed to you at the time of purchase and may include a monthly, annual or other recurring fee (“Fee”). The Fee is charged on the day of the month or year in which your Subscription commences (or such other date agreed to by the parties) and is charged on a recurring basis until the Subscription is terminated by you or Company pursuant to the Agreement. Company reserves the right to adjust the price of the Fee upon at least 30 days’ notice, such adjustment to take effect on the subsequent Fee billing cycle.

Taxes. The Fee excludes taxes and any applicable duties and charges, which you shall pay. If Company pays or collects taxes on your behalf, you shall pay Company the applicable amount on the same terms as the Fee. You shall indemnify Company for any liability or expense Company may incur, including but not limited to outstanding taxes and any related penalties or interest, in connection with your failure to remit applicable taxes and/or other amounts owed to Company.

Upgrading or Downgrading. You may upgrade your Subscription by paying an additional Fee (prorated to the date of the month or year in which you upgraded and payable on the subsequent Fee billing cycle) or downgrade, upon Company approval of your downgrade request. For monthly Subscription downgrades, a downgraded Fee takes effect on the subsequent billing cycle. For annual Subscription downgrades, Company shall provide a Fee credit pro-rated to the date of your downgrade credited to next billing cycle. For any other billing cycle, please refer to the Order Form for Subscription upgrade and downgrade rules.

Cancellation. For Individual Account holders who are not a Member under an Institutional Account, a Subscription may be cancelled directly through the Platform and is effective immediately. For Institutional Account holders, a Subscription may be cancelled by providing Company at least 60 days written notice to hello@essaygrader.ai, with “Cancellation” as the subject line and your Account information in the email body. Upon your cancellation of a Subscription: (a) you remain liable for all charges accrued under your Subscription or Order Form and shall not receive a refund for any Fee already paid; and (b) access to your Subscription will automatically terminate and all associated data, to the extent held by Company, deleted, except as expressly provided for in the Agreement and Company Privacy Policy.

Payment. You shall provide Company with a form of payment and corresponding payment information (for example, bank account or credit card information) acceptable to Company. If you elect to pay by credit card, you hereby authorize

Company, or a third party designated by Company (for example, Stripe) to charge such credit card. By making a payment to Company, you represent and warrant that: (a) you have the legal right to use any credit card(s) or other payment method(s) in connection with your payments to Company; and (b) the information you provide for payment purposes is correct and complete. If paying by credit card, you shall provide a valid credit card and if such credit card changes or expires, or is revoked, disputed, cancelled or not valid for any other reason, Company may suspend your and/or your Members' use of the Service upon 5 days' notice or otherwise terminate the Agreement pursuant to Section 4. You shall immediately notify Company of any inaccuracies to payment information. By submitting payment information, you hereby authorize and grant all rights necessary for Company, or any third party acting on Company's behalf, to automatically charge the Fee on a recurring basis. The Fee excludes applicable taxes, which Company charges as required by the laws of your jurisdiction and that you shall pay pursuant to Section 3.2.

Failure to Pay. Failure to pay the Fee in a timely manner for a 7-day period shall result in Company ceasing to offer the Service to you until this Agreement is terminated pursuant to Section 4.3(a) or you pay all Fees in arrears. The Company reserves the right to charge interest on any overdue Fee.

Refunds. Unless required by law or in its sole discretion, Company shall not provide a refund for any Fee you have paid. If you believe that you are entitled to a refund, you may request a refund by emailing Company at hello@essaygrader.ai, including "REFUND REQUEST" in the subject line and describing in the body of the email how you qualify for a refund along with any other relevant details of your request.

4. Term and Termination

Term. Unless otherwise specified in writing by Company, this Agreement is effective on the earliest of: (a) in the case of access to the Public Site, the date you first access the Public Site; or (b) if a Subscription or Free Subscription, the earliest of: (i) the date you sign up for a Subscription or Free Subscription; or (ii) the date an Order Form is executed (the "Effective Date"). Subscriptions are automatically renewed on a monthly, annual or other recurring anniversary of the Effective Date unless terminated, suspended or cancelled by you, and you hereby consent to such autorenewal. The Agreement is effective from the Effective Date until terminated (the "Term").

Suspension. Company reserves the right to suspend or otherwise restrict access to the Service without notice to you if Company believes you are in breach of any term of the Agreement and for any other reason as detailed in this Agreement or applicable policies/agreements. If access to the Service is restricted or suspended, Company is not liable to you, any Member or any third party for any loss arising from such action. Company may lift a suspension or reverse restricted access in its sole discretion.

Termination. The Term terminates upon the earliest of:

failure to pay any amount due and owing in a timely manner and failure to remedy non-payment within 7 days after receipt of notice for amounts overdue by 7 days;

non-compliance with the Agreement and failure to remedy such non-compliance within 10 days after receiving written notice;

at your option, pursuant to Section 3.4; or

immediately, upon Company ceasing to offer the Service, which may occur at any time without notice.

Effect of Suspension, Termination. Upon Subscription suspension or termination, you acknowledge your access to the Service ceases. While Company may store data related to your use of the Service for up to 180 days after the date of termination, it is not obligated to, and, thereafter, may permanently delete all such data, all in accordance with Company's Privacy Policy. Notwithstanding the foregoing, you acknowledge and agree that you are not entitled to a refund or other compensation of any kind resulting from such suspension or termination, including any losses sustained

by the deletion of data associated with the Service, regardless of whether effectuated by you or Company, and that Company shall not be liable to you or any third party for such suspension or termination and any loss related thereto.

5. Use of the Service

Authorized Use. During your use of the Service, you may not:

knowingly provide false or inaccurate information to Company;

engage in conduct constituting improper use of the Service, in a manner that exceeds reasonable volume or constitutes excessive or abusive usage;

decompile, disassemble or reverse engineer the Service or otherwise attempt to derive the Service source code or gain unauthorized access to the Service;

alter, change or circumvent security related aspects of the Service;

export or share versions of the Service (or parts of the Service) outside the Service (including through any project or job postings);

use any automated system (bot, spider, etc.) to access the Service;

knowingly input anything containing a computer virus or any code, file or software program that may harm the Company, the Service or other users;

knowingly reproduce, rearrange, modify, change, alter, translate, create derivative works from, display, perform, publish, or distribute the Service;

knowingly break, disrupt or attempt to break or disrupt any device used to support the Service or other's experience of the Service or knowingly exploit a flaw or bug in the Service;

knowingly store or transmit material that is infringing, libelous, unlawful or in violation of any person's rights or a group of people's rights;

use the Service to provide information or data to a competitor of Company;

use hate speech, hate terms, racist speech, racist terms or any other words or symbols that signify hate towards any person or group of people, including derogatory comments against women or minorities;

sell, rent, lease, license or sublicense the Service or access thereto, unless expressly permitted by the Company in writing;

promote, encourage or undertake illegal activity or communicate, link to, post, stream, submit or upload content that contains objectionable or offensive conduct through the Service; or

knowingly infringe or violate third-party rights including but not limited to: (i) contractual rights; (ii) copyright, patent, trademark or trade secret rights; (iii) privacy rights; (iv) publicity rights; or (v) confidential information,

as determined by Company in its sole and absolute discretion.

Excess Usage. Company reserves the right to monitor and reasonably restrict your ability to use the Service if you are using excessive computing resources impacting performance of the Service for Company and/or other users, as determined by Company acting reasonably. Company shall provide you with prior written notification in cases where it restricts such use and use good faith efforts to determine an appropriate alternative or workaround solution prior to restricting your ability to use the Service.

Privacy Policy. Use of the Service is governed by a Privacy Policy detailing how Company collects, uses and/or discloses personal and anonymous data about you. Company Privacy Policy can be found at essaygrader.ai/privacy-policy. By using the Service, you represent and warrant that you have the ability to gather consents to Company's Privacy Policy from all authorized Members prior to their access and use of the Service. If at any time you disagree with the then-current Privacy Policy, you must immediately cease use of the Service and contact

Company at hello@essaygrader.ai.

6. Artificial Intelligence

AI Disclaimer. Certain aspects of the Service use artificial intelligence (“AI”), which AI features enable machine learning capabilities and predictive analysis to generate outputs (“AI Content”) from specific data inputs within the Service, including by assessing inputs and content you upload under the specific guidelines of a grading rubric (“AI Features”). These AI Features are provided by the Service’s integration with technology provided by OpenAI OpCo, LLC (“OpenAI®”). Company uses commercially reasonable efforts to ensure that data and inputs that Company provides to OpenAI® in providing the Service are de-identified and/or anonymized prior to being shared. By using the Service, you agree that use of the AI Features is permitted by all applicable laws of your jurisdiction. You represent and warrant that you have all necessary right, title and interest to any data inputs used for the AI Features and that any such data inputs provided by third parties are collected, used and shared in accordance with applicable laws, including but not limited to privacy laws. Use of the AI Features are provided on an “AS IS” and “WHEN AVAILABLE” basis.

AI Outputs. AI Content and related outputs the Service generates through AI Features may not be entirely accurate and may produce errors, inconsistencies or other inaccuracies. You acknowledge and agree that any AI Content or other outputs produced by the AI Features do not reflect the beliefs, opinions, or advice of Company or any Company Parties (defined below) personally. AI Content does not constitute legal, financial, medical or any other professional advice. Company disclaims all representations, warranties and covenants as to the accuracy and/or completeness of any AI Content. You are responsible for verifying all AI Content and related outputs for accuracy and completeness and revising or editing such outputs, as may be reasonably required, before sharing them. You retain all right, title and interest to the AI Content produced by the AI Features.

AI Acceptable Use Policy. By using any of the AI Features, you agree to de-identify and/or anonymize data, content or inputs that include personally identifiable information of students and/or minors before providing such data or inputs on the Service, including but not limited to associated metadata. You also hereby represent and warrant that you will not, nor will you authorize anyone on your behalf to:

misrepresent to anyone that the AI Content or related outputs generated by the AI Features are human-generated;

use the AI Features in a way that violates or infringes upon any third party rights, including but not limited to the rights of students and/or minors under the Family Educational Rights and Privacy Act (FERPA) and the Children’s Online Privacy Protection Act (COPPA); or

use the AI Features to offer legal, financial or health advice, to promote political opinions, or to engage in activities that have a high risk of economic harm,

as determined by Company in its sole and absolute discretion.

7. Property

Company Property. The Service and constituent parts thereof, including but not limited to software, workflow processes, user interface, designs, know-how and other technologies provided by Company are the proprietary property of Company and its licensors, and all right, title and interest therein, including but not limited to all associated intellectual property rights, remain only with Company and its licensors. You may not remove or modify any proprietary marking or restrictive legends in the Service. The Agreement does not convey any right, title or interest in, or constitute the sale of any right to, the Service, Subscription or Account. You acknowledge and agree that you have no ownership or other property interest in your Account and that all rights in and to your Account are and shall be forever owned by and inure to the benefit of Company, excluding Customer Data. The trademarks, logos, and service marks (collectively, “Trademarks”) displayed on the Service are registered and unregistered marks of Company or are otherwise used in accordance with applicable law. Nothing contained in the Agreement should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of the Trademarks without Company’s written permission. Company reserves all rights unless expressly granted in this Agreement.

Customer Property. You retain all right, title and interest in all information, content and data owned or licensed by you that you provide, upload or share through the Service, (“Customer Property”) subject to any agreement imposed by third party vendors and services. Company may use, access or store Customer Property in order to provide, analyze and modify the Service, and you hereby grant Company a limited and revocable license to Customer Property under all copyright, trademark, trade secret, patent, privacy and publicity rights and any other intellectual or industrial property rights you own or control to use, display, modify, record, translate, transmit or otherwise exploit such Customer Property solely in order to facilitate the provision of Service. You represent and warrant that: (a) all Customer Property you upload to Service is uploaded and/or shared in accordance with applicable laws, including but not limited to the Family Educational Rights and Privacy Act (FERPA) and the Children’s Online Privacy Protection Act (COPPA), as applicable, and all other intellectual property and privacy laws; and (b) you have obtained all consents, licenses and rights necessary to license Customer Property to Company prior to providing or sharing any such Customer Property with Company, including but not limited to third party rubrics and submissions.

Third Party Rights. All right, title and interest in and to the third party services including but not limited to copyrights, patents, trademark, trade secrets, trade names, computer code (source and object), are owned by or licensed to the respective third party services providers. The Agreement does not convey any right, title or interest in, or constitute the sale of any right to, the third party services.

Feedback; Survey. Unless otherwise agreed to in writing, Company may, with your consent, use your name, company name, trademarks and other communications in Company marketing and promotional materials for the limited purpose of surveys, reviews, ratings, webinars, testimonials and comments that you provided Company through the Service (“Feedback”). By submitting Feedback, you agree that: (a) your disclosure is voluntary, free, unsolicited, and without restriction; (b) your Feedback does not contain the confidential or proprietary information of third parties, including but not limited to Student Data; and (c) Company is free to use the Feedback without any compensation to you and to disclose the Feedback on a non-confidential basis or otherwise to anyone.

8. DMCA

Company complies with the U.S. Digital Millennium Copyright Act (“DMCA”). If you are a copyright owner or representative of the owner and believe that a user has submitted or uploaded material that infringes upon your United States copyrights, you may submit notification in accordance with the DMCA by providing Company with the following information in writing:

identification of the copyrighted work claimed to have been infringed, or, if multiple copyrighted works are covered by a single notification, a representative list of such works;

identification of the claimed infringing material and information reasonably sufficient to permit us to locate the material on the Service (such as the URL(s) of the claimed infringing material);

information reasonably sufficient to permit us to contact you, such as an address, telephone number, and, if available, an email address;

a statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law;

a statement by you, made under the penalty of perjury, that the above information in your notification is accurate and that you are the owner of an exclusive right that is allegedly infringed or are authorized to act on the owner’s behalf; and

your physical or electronic signature.

Please send all written correspondence of alleged infringements to:

ATTN: Copyright Compliance Department

Voyer Law Corporation

403-134 Abbott Street

Vancouver, British Columbia, Canada

V6B 2K4

You may also contact legal by email to dmca@voyerlaw.com

8. Disclaimer; Limitation of Liability; Indemnity

DISCLAIMER. THE SERVICE IS PROVIDED TO YOU “AS IS” AND COMPANY AND ITS SUBSIDIARIES, AFFILIATES, OFFICERS, DIRECTORS, EMPLOYEES, REPRESENTATIVES AND ASSIGNS (COLLECTIVELY, “COMPANY PARTIES”), DISCLAIM ALL REPRESENTATIONS, WARRANTIES AND CONDITIONS, EXPRESS, IMPLIED OR STATUTORY, INCLUDING WITHOUT LIMITATION MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT OF THIRD-PARTY RIGHTS OR COMPLIANCE WITH LAWS, TO THE EXTENT PERMITTED BY LAW. WITHOUT LIMITING THE FOREGOING, THE COMPANY PARTIES MAKE NO REPRESENTATIONS OR WARRANTIES THAT USE OF THE SERVICE WILL NOT INFRINGE ANY COPYRIGHT, PATENT, TRADEMARK LAW OR OTHER RIGHTS HELD BY A THIRD PARTY. FURTHER AND WITHOUT LIMITING THE FOREGOING, THE COMPANY PARTIES MAKE NO REPRESENTATIONS OR WARRANTIES THAT THE SERVICE, SERVICES PERFORMED AND PRODUCTS PROVIDED BY THE COMPANY PARTIES OR OTHER THIRD PARTIES, WILL COMPLY WITH APPLICABLE LAWS WITHIN YOUR JURISDICTION, MEET YOUR REQUIREMENTS, NOT CAUSE DAMAGE TO YOU, YOUR PROPERTY OR PROPERTY OF OTHERS, OR THAT OPERATION OF THE SERVICE WILL BE UNINTERRUPTED, CONTINUOUSLY AVAILABLE, ERROR FREE OR WILL NOT HARM YOUR COMPUTER OR MOBILE DEVICE OR RESULT IN LOST DATA. THE COMPANY PARTIES MAKE NO REPRESENTATIONS, WARRANTIES OR GUARANTEES REGARDING: (A) YOUR SATISFACTION WITH THE SERVICE; (B) THAT THE SERVICE WILL ALWAYS BE AVAILABLE AND ERROR FREE; OR (C) THAT THE COMPANY WILL PROMPTLY RESPOND TO ANY INQUIRIES OR SUBMISSIONS. NO ORAL ADVICE OR WRITTEN INFORMATION PROVIDED BY THE COMPANY PARTIES WILL CREATE ANY WARRANTY AND YOU SHALL NOT RELY EXCLUSIVELY UPON SUCH ADVICE OR INFORMATION. YOU BEAR THE ENTIRE RISK AS TO THE PERFORMANCE, OPERATION AND QUALITY OF THE SERVICE.

LIMITATION OF LIABILITY. THE COMPANY PARTIES SHALL NOT BE LIABLE TO YOU FOR ANY CLAIM, LOSS OR DAMAGE OF ANY KIND ARISING OUT OF OR RELATING TO THE SERVICE OR THIRD PARTY SERVICES, INCLUDING WITHOUT LIMITATION DIRECT, CONSEQUENTIAL, INCIDENTAL OR SPECIAL DAMAGES, LOSS OF DATA, LOSS OF PROFITS, LOSS OF GOODWILL, PERSONAL INJURY OR DEATH AND ANY AND ALL OTHER TANGIBLE AND INTANGIBLE DAMAGES OR LOSSES, EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE OR LOSS. NOTE THAT SOME JURISDICTIONS DO NOT ALLOW THE DISCLAIMER OF CERTAIN TERMS OR WARRANTIES OR EXCLUSION OF LIABILITY FOR CERTAIN DAMAGES AND, IF ANY DISCLAIMER OR LIMITATION OF LIABILITY IS FOUND UNENFORCEABLE, VOID OR DOES NOT FULLY SHIELD THE COMPANY PARTIES FROM LIABILITY, YOU AGREE THAT THE COMPANY PARTIES’ MAXIMUM AGGREGATE LIABILITY IN ANY CASE WHATSOEVER WILL BE THE TOTAL AMOUNT PAID BY YOU TO THE COMPANY IN THE 12 MONTHS IMMEDIATELY PRECEDING THE DATE OF THE HARM IN QUESTION. ANY CLAIM THAT YOU MAY HAVE AGAINST THE COMPANY PARTIES MUST BE COMMENCED NO LATER THAN 12 MONTHS AFTER THE DAY ON WHICH THE CLAIM IS DISCOVERED OR OUGHT TO HAVE BEEN DISCOVERED BY YOU.

Indemnity. You shall indemnify, defend and hold the Company Parties harmless from and against any claim, liability, demand, injury, damage, cost, loss or expense, including reasonable attorneys’ fees, in connection with your use and access to the Service or Third Party Services, personal injury or death arising while using or accessing the Service or Third Party Services, or your violation of the Agreement or any law or regulation (including but not limited to privacy

laws). You shall not settle any claim without the Company's advance written consent unless such settlement releases the Company Parties unconditionally. Company reserves the right to, at its expense, assume control of the claim.

8. Dispute Resolution

Initial Dispute Resolution. Most disputes between you and Company can be resolved without resort to legal action. If you have any dispute with Company, you agree that prior to taking any formal legal action you shall contact Company at hello@essaygrader.ai, and provide a brief, written description of the dispute and your contact information. You and Company agree to use commercially reasonable efforts to settle any dispute, claim, question, or disagreement directly through consultation, and good faith negotiations shall be a condition to either party initiating a lawsuit or arbitration.

Binding Arbitration. If the parties cannot come to a resolution within 30 days after the time an informal dispute resolution is initiated, you agree that any disputes or claims between you and Company, including the Company Parties, shall be resolved by confidential, final and binding arbitration to be conducted in Toronto, Ontario and administered by the Toronto Commercial Arbitration Society ("TCAS"). The arbitration shall be commenced and conducted in accordance with the TCAS's Model Rules (the "Rules"). Your arbitration fees and your share of the arbitrator's compensation shall be governed by and, where appropriate, limited by the Rules. By agreeing to arbitration, you understand that you are waiving the right to sue in court or have a jury trial for all claims, except as limited by applicable law. BY AGREEING TO ARBITRATION, YOU UNDERSTAND THAT YOU ARE WAIVING THE RIGHT TO SUE IN COURT OR HAVE A JURY TRIAL FOR ALL CLAIMS, EXCEPT AS LIMITED BY APPLICABLE LAW. THE PARTIES AGREE THAT THIS SECTION 10.2 SHALL NOT APPLY TO: (I) DISPUTES CONCERNING INTELLECTUAL PROPERTY, ALLEGATIONS OF THEFT, PIRACY, VIOLATION OF PRIVACY LAWS OR USE OF THE SERVICE IN VIOLATION OF THIS AGREEMENT; OR (II) CLAIMS FOR INJUNCTIVE RELIEF.

CLASS ACTION WAIVER AND PROHIBITION. YOU AGREE THAT ANY ARBITRATION OF A DISPUTE OR CLAIM SHALL BE LIMITED BETWEEN COMPANY PARTIES AND YOU INDIVIDUALLY. TO THE FULL EXTENT PERMITTED BY APPLICABLE LAW, NO ARBITRATION SHALL BE JOINT WITH ANY OTHER AND YOU HAVE NO RIGHT OR AUTHORITY TO: (A) ARBITRATE A DISPUTE OR CLAIM ON A CLASS-ACTION BASIS OR TO UTILIZE CLASS-ACTION PROCEDURES; AND TO (B) RAISE A DISPUTE OR CLAIM IN A REPRESENTATIVE CAPACITY ON BEHALF OF THE GENERAL PUBLIC OR ANY OTHER PERSONS. YOU UNDERSTAND AND AGREE THAT YOU ARE WAIVING THE RIGHT TO HAVE ANY DISPUTE OR CLAIM RESOLVED AS A PLAINTIFF OR MEMBER OF A CLASS ACTION.

8. General

No Joint Relationship/Independent Contractor Relationship. Nothing in the Agreement shall be construed to create any joint partnership, joint venture, employer-employee or agency relationship between you and Company, unless expressly provided for in a separate written agreement between you and Company incorporating terms of the Agreement.

Governing Law. The Agreement, Terms of Service, Privacy Policy and any other applicable policies of Company ("Company Policies") are governed by the laws of the province of Ontario, without reference to principles of conflicts of laws. The parties irrevocably attorn to the jurisdiction of the appropriate provincial and federal courts of the province of Ontario to hear any proceedings related to the Company Policies.

Severability and Waiver. If any provision of the Company Policies is held by a court of competent jurisdiction to be invalid or unenforceable, such provision shall be changed and interpreted so as to best accomplish the objectives of the original provision to the fullest extent allowed by law with remaining provisions of the Company Policies in full force and effect. No failure or delay by a party in exercising any right, power or remedy under the Agreement constitutes a waiver thereof.

California Consumer Notice. Under California Civil Code Section 1789.3, California users of an electronic commercial service are entitled to know that they may file grievances and complaints with the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs, in writing at 1625 North Market Blvd., Suite N112, Sacramento, CA 95834, or by telephone at (800) 952-5210.

Export Compliance; UN Convention Disclaimer. U.S. and foreign export control laws regulate the export and re-export of technology originating in the United States and other foreign countries. You agree to abide by all export control laws and regulations as applicable and will not transfer, directly or indirectly, by electronic transmission or otherwise, the Service from any countries or foreign nations in violation of such laws or regulations. You shall comply with the export laws and regulations of the applicable jurisdictions in which you provide, access or use the Service. The parties expressly disclaim application of the United Nations Convention on Contracts for the International Sale of Goods.

Force Majeure. Except for any payment obligations, neither you nor the Company shall be liable for failure to perform any obligation under the Agreement to the extent such failure is caused by a force majeure event (including acts of God, pandemics (including government-imposed recommendations and restrictions due to a pandemic or epidemic), natural disasters, war, civil disturbance, action by a government entity, strike, and other causes beyond reasonable control). The party affected by the force majeure event shall provide notice to the other party within a commercially reasonable time and shall use commercially reasonable efforts to resume performance as soon as practicable. Obligations not performed due to a force majeure event shall be performed as soon as reasonably possible when the force majeure event concludes.

Assignment. Company may assign the Agreement, without your consent or notice to you. You cannot assign, transfer or pledge the Agreement, in whole or in part, without the prior written consent of Company.

Survival. Sections 3.7, 4.4, 5.3, 7, 9, 10 and 11 survive termination of the Agreement.

Currency. Unless otherwise stated, all references to a sum of money or fees in the Agreement are expressed in lawful money of the United States of America and $ refers to USD.

Entire Agreement. The Agreement, together with the Company Policies and any other agreed upon documents linked to or referenced in this Agreement, including but not limited to any Order Form, constitute the entire agreement between you and Company with respect to the subject matter hereof and supersedes any prior and contemporaneous oral or written agreements, proposals, communications, representations or undertakings provided.

Priority of Agreements. In the event of a conflict between these Terms of Service and any other agreement between you and Company, including but not limited to any Order Form or Work Order, these Terms of Service control.

Updates. Company reserves the right, in its sole discretion, to modify the Agreement at any time (each, an “Update”) and shall make each Update available through the Website and/or email notification to you. You are deemed to accept any Update by continuing to use the Service unless you terminate the Service. Unless Company states otherwise, an Update is automatically effective 30 days after such Update is made available on the Website, except in such case where an Update is immaterial to any of your legal rights or legal obligations of Company and Update is made only to correct a grammar, formatting or typographical inaccuracy and in such case, an Update is effective immediately after it is made available on the Website.

02 | Download security report

https://drive.google.com/file/d/17jjly1Pkke_aZ8JO2VeAwL1EhMRxT4LH/view?usp=sharing

This original downloadable document is appended after the text snapshot sections. An individual copy is saved in the Original documents subfolder.

EssayGrader™

SECURITY AUDIT REPORT

How we keep student and teacher data safe.

Generated by continuous, real-time monitoring of EssayGrader's code and infrastructure — from a developer's laptop all the way to the servers that deliver the product.

NIST SP 800-53 | SOC 2-aligned practices | FERPA · COPPA · CCPA

PREPARED FOR

School and district leadership

Share with your IT, privacy or procurement team.

REPORT DATE

30 April 2026

Monitoring is continuous; reports regenerate on request.

INDEPENDENT MONITOR

Aikido Security

Findings are generated by a 3-rd party, not self-reported.

What this report covers

Access & account control

Least-privilege roles, monitoring for over-privileged accounts, alerts on configuration changes and atypical usage.

Encryption in transit & at rest

Data encrypted at rest, enforced HTTPS and current TLS, up-to-date cryptography libraries.

Audit logging & retention

System-wide, time-correlated audit trails with long-term retrieval and cryptographic protection of audit records.

Data-exfiltration protection

Access-pattern monitoring, insider-threat detection and DLP controls on sensitive student data.

Essay Grader AI: security audit report

Created on 30 April 2026 @ 19:50

Essay Grader AI wants to build trust by giving you insight in how it builds software in a secure manner. The report details how software development at Essay Grader AI is being monitored and safeguarded from the developer's computer all the way to the infrastructure used for delivery.

This security report has been generated by Aikido Security based on real-time monitoring of Essay Grader AI code and infrastructure.

NIST 800-53 compliance

A brief overview of the NIST directive and any measures taken for these.

Title	Taken measures
1.2.4 Account Management | Disable Accounts	✓ Has IAM users without any assigned permissions
1.2.5 Account Management | Automated Audit Actions	✓ Has notifications for changes in IAM configurations (roles, users, policies)
1.2.8 Account Management | Privileged User Accounts	✓ Has identified over-privileged users, roles, or service accounts
1.2.13 Account Management | Account Monitoring for Atypical Usage	✓ Detect risky behaviors like IAM configuration tampering ✓ Has IAM users without any assigned permissions
1.3.8 Access Enforcement | Role-based access control	✓ Ensure custom roles are assigned appropriate permissions for resource management ✓ Detect and mitigate privilege escalation permissions in roles or users
1.4.22 Information Flow Enforcement | Physical or Logical Separation of Information Flows	✓ Encrypts data at rest ✓ Enforces safe SSL protocol usage ✓ Enforces HTTPS traffic to cloud instances ✓ Enforces latest TLS version ✓ Prevents abuse of cookies ✓ Uses up to date cryptography libraries ✓ Ensure no unrestricted access to critical infrastructure or services
1.6.2 Least Privilege | Authorize Access to Security Functions	✓ Encrypts data at rest ✓ Ensure only privileged roles are used for accessing sensitive security configurations ✓ Enforces safe SSL protocol usage ✓ Enforces latest TLS version
1.17.2 Remote Access | Monitoring and Control	✓ Ensure secure remote access protocols (e.g., RDP, SSH) are in use. ✓ Monitor and log all remote access activities for security analysis. ✓ Disable or limit access from insecure or unknown networks.

1.17.6 Remote Access | Monitoring for Unauthorized Connections	✓ Generate alerts for brute force attacks on remote access points.
1.23.1 Data Mining Protection	✓ Analyze and monitor data access patterns for unusual activity. ✓ Restrict excessive or unauthorized data mining queries. ✓ Identify and block attempts to exfiltrate sensitive information.
3.6.2 Audit Record Review, Analysis, and Reporting | Automated Process Integration	✓ Has deletion protection for cloud resources ✓ Track and analyze user activity to detect potential insider threats. ✓ Limit access to sensitive data based on user roles and responsibilities. ✓ Use Data Loss Prevention (DLP) solutions to prevent unauthorized data exfiltration.
3.9.4 Protection of Audit Information | Cryptographic Protection	✓ Encrypts data at rest ✓ Enforces latest TLS version ✓ Enforces safe SSL protocol usage ✓ Prevents abuse of cookies ✓ Enforces HTTPS traffic to cloud instances
3.9.5 Protection of Audit Information | Access by Subset of Privileged Users	✓ Has identified over-privileged users, roles, or service accounts
3.11.2 Audit Record Retention | Long-term Retrieval Capability	✓ Logging Enabled
3.12.2 Audit Record Generation | System-wide and Time-correlated Audit Trail	✓ Has file storage access security enabled
4.7.7 Continuous Monitoring | Automation Support for Monitoring	✓ Logging Enabled
5.5.2 Access Restrictions for Change | Automated Access Enforcement and Audit Records	✓ Encrypts data at rest ✓ Ensure only privileged roles are used for accessing sensitive security configurations ✓ Enforces safe SSL protocol usage ✓ Enforces latest TLS version ✓ Has file storage access security enabled

5.7.9 Least Functionality | Binary or Machine Executable Code	✓ Proper Access Management to Resources ✓ Has proper access controls for cloud resources
6.9.6 System Backup | Transfer to Alternate Storage Site	✓ Has backups for cloud resources
7.2.2 Identification and Authentication (organizational Users) | Multi-factor Authentication to Privileged Accounts	✓ Has identified over-privileged users, roles, or service accounts
7.2.3 Identification and Authentication (organizational Users) | Multi-factor Authentication to Non-privileged Accounts	✓ Has identified over-privileged users, roles, or service accounts
7.5.2 Authenticator Management | Password-based Authentication	✓ Proper Access Management for Resources ✓ Proper Access Management to Resources ✓ Enforces multi-factor authentication (MFA)
7.5.7 Authenticator Management | Protection of Authenticators	✓ Proper Access Management for Resources ✓ Proper Access Management to Resources ✓ Enforces multi-factor authentication (MFA)
7.10.1 Adaptive Authentication	✓ Proper Access Management for Resources ✓ Proper Access Management to Resources ✓ Enforces multi-factor authentication (MFA) ✓ Detect risky behaviors like IAM configuration tampering
8.5.2 Incident Monitoring | Automated Tracking, Data Collection, and Analysis	✓ Logging Enabled ✓ Identify and block attempts to exfiltrate sensitive information.
13.12.1 Insider Threat Program	✓ Encrypts data at rest ✓ Ensure only privileged roles are used for accessing sensitive security configurations ✓ Enforces safe SSL protocol usage ✓ Enforces latest TLS version ✓ Has file storage access security enabled
16.10.1 Threat Hunting	✓ Has file storage access security enabled

17.3.2 System Development Life Cycle | Manage Preproduction Environment	✓ Encrypts data at rest ✓ Enforces safe SSL protocol usage ✓ Enforces HTTPS traffic to cloud instances ✓ Prevents abuse of cookies ✓ Uses up to date cryptography libraries ✓ Enforce network policies to separate information flows physically or logically.
18.5.2 Denial-of-service Protection | Restrict Ability to Attack Other Systems	✓ Restricts ability to attack other systems
18.5.3 Denial-of-service Protection | Capacity, Bandwidth, and Redundancy	✓ Enforces safe SSL protocol usage ✓ Has budgeting alerts set up ✓ Has deletion protection for cloud resources
18.7.6 Boundary Protection | Deny by Default Allow by Exception	✓ Encrypts data at rest ✓ Enforces latest TLS version ✓ Enforces safe SSL protocol usage ✓ Prevents abuse of cookies ✓ Enforces HTTPS traffic to cloud instances ✓ Has file storage access security enabled
18.7.8 Boundary Protection | Split Tunneling for Remote Devices	✓ Disable or limit access from insecure or unknown networks.
18.7.11 Boundary Protection | Prevent Exfiltration	✓ Analyze and monitor data access patterns for unusual activity. ✓ Restrict excessive or unauthorized data mining queries. ✓ Disable or limit access from insecure or unknown networks. ✓ Identify and block attempts to exfiltrate sensitive information. ✓ Enforces safe SSL protocol usage
18.7.16 Boundary Protection | Networked Privileged Accesses	✓ Proper Access Management for Resources ✓ Proper Access Management to Resources ✓ Has file storage access security enabled

18.12.2 Cryptographic Key Establishment and Management | Availability	✓ Encrypts data at rest ✓ Enforces latest TLS version ✓ Enforces safe SSL protocol usage ✓ Enforces HTTPS traffic to cloud instances
18.16.3 Transmission of Security and Privacy Attributes | Anti-spoofing Mechanisms	✓ Has ANI Spoofing Protection Enabled
18.16.4 Transmission of Security and Privacy Attributes | Cryptographic Binding	✓ Encrypts data at rest ✓ Enforces latest TLS version ✓ Enforces safe SSL protocol usage ✓ Enforces HTTPS traffic to cloud instances
18.20.3 Secure Name/address Resolution Service (authoritative Source) | Data Origin and Integrity	✓ Has file storage access security enabled ✓ Uses DNSSEC extensions
18.21.2 Secure Name/address Resolution Service (recursive or Caching Resolver) | Data Origin and Integrity	✓ Has file storage access security enabled ✓ Uses DNSSEC extensions
18.22.1 Architecture and Provisioning for Name/address Resolution Service	✓ Logging Enabled
18.23.4 Session Authenticity | Unique System-generated Session Identifiers	✓ Has brute force protection enabled
18.24.1 Fail in Known State	✓ Use Data Loss Prevention (DLP) solutions to prevent unauthorized data exfiltration.
18.28.2 Protection of Information at Rest | Cryptographic Protection	✓ Encrypts data at rest ✓ Enforces latest TLS version ✓ Enforces safe SSL protocol usage ✓ Prevents abuse of cookies ✓ Enforces HTTPS traffic to cloud instances
18.34.2 Non-modifiable Executable Programs | No Writable Storage	✓ Has file storage access security enabled